

SENATE No. 1139

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to restore the statute of limitations for deaths due to tobacco use.

PETITION OF:

NAME:

John F. Keenan

DISTRICT/ADDRESS:

Norfolk and Plymouth

SENATE No. 1139

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 1139) of John F. Keenan for legislation to restore the statute of limitations for deaths due to tobacco use. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to restore the statute of limitations for deaths due to tobacco use.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 229 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, after the word “deceased”, in line 34, the
3 following words:- “. An action to recover damages under this section is not derivative of any
4 personal injury claim brought by the decedent and may be commenced regardless of whether the
5 decedent timely commenced a claim for the injury causing death”.

6 SECTION 2. This act shall apply retroactively to July 6, 2023.